The court was persuaded, and asked the government to update the memorandum based on its decision in this case and previous cases. The court ordered that the memorandum be treated as a set of 'binding instructions' that members of the armed forces are obliged to follow. The court directed that any violations of these instructions must be taken seriously, and action should be taken against errant officers. Despite the court's decision, investigations about violations of these instructions were not taken seriously, with any meaningful action being a pipe dream. In 2012, an association that filed a PIL in the Supreme Court alleged that no action was taken against any officer in respect of over 1,500 unlawful killings by security officers in Manipur.

After over one and a half decades, the cases challenging the constitutional validity of the AFSPA were closed. The decision was seen as a resounding victory for the government, with the court's directions perceived as no more than token concessions (or as one eminent scholar put it, 'crumbs'[22]). The title of a story in the *Times of India* the day after the decision summarized it succinctly: 'Govt.'s power to deploy army in N-E upheld'.[23]

Two aspects of the Supreme Court's decision were particularly striking. First, the court's decision made virtually no reference to the fundamental rights to equality, freedom and life based on which the AFSPA was challenged,[24] or for that matter the legal tests to be applied to determine whether those rights had been violated. The court expended most of its intellectual capital on the issue of Parliament's competence to enact the AFSPA, without scrutinizing with any rigour whether it nevertheless violated fundamental rights. In some respects, the second issue was more important than the first, because it asked *whether* the law was constitutionally valid, rather than *who* could enact it. It is unclear if this happened because of the way in which the case was argued. In any event, it ought to have been obvious to the court that a section authorizing the use of *lethal force* should have been rigorously tested on the touchstone of *right to life* under Article 21 of the Constitution.